more, said letter press copy books have been and still are in my possession, custody and control, and as against any other officer or employé of said corporation, or any other person, I have been entitled to such possession, custody and control. I did not secure and have not at any time held possession of said letter press copy books in anticipation that any subpœna for their production would be served upon me or said corporation, or for the purpose of evading any subpœna or other legal process which might be served upon me or said corporation."

He alleged that he was the "C. C. Wilson" mentioned in the subpœna as the one against whom the inquiry was directed, and described the pending indictments. He stated that the letter press copy books were essential to the preparation of his defense and that he was using them for that purpose; that he believed that the matters therein contained would tend to incriminate him; and that he "should not be compelled, directly or indirectly, to furnish or produce said letter press copy books as called for by said subpœna," nor to testify in regard to their contents, nor permit them to be used against him. He added that he had the books with him, but that he declined to deliver them to the grand jury, insisting that his refusal was in entire good faith.

The grand jury presented the matter to the court and Wilson was adjudged to be in contempt and was committed to the custody of the marshal "until he shall cease to obstruct and impede the United Wireless Telegraph Company from complying with the subpœna *duces tecum* attached to the above mentioned presentment, or otherwise purge himself from this contempt." This is the judgment which is the subject of review in the first case (No. 759).

Wilson then petitioned for a writ of *habeas corpus* alleging that the commitment was illegal for the reasons (1) that the court was without jurisdiction to entertain